LOFALL VS THE STATE OF OREGON at el – COMPLAINT C

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TYLER A. LOFALL
PRO SE PLAINTIFF
TYLERALOFALL@GMAIL.COM
6880 NW 271ST AVE
HILLSBORO, OR 97124

UNITED STATES DISTRICT COURT
DISTRICT OF OREGON
PORTLAND DIVISION

TYLER ALLEN LOFALL, Plaintiff, vs. STATE OF OREGON AT EL, Defendants	Case No.: TBD 3:24-cv-839-SB COMPLAINT 42 USC 1983 "COMPLAINT C" JURY TRIAL REQUESTED

COMES NOW, Plaintiff TYLER ALLEN LOFALL, and alleges the following:

I. INTRODUCTION

1. Plaintiff Tyler Allen Lofall brings this action against Defendants State of Oregon, County of Clackamas, Clackamas County Police Department, John Doe Officer 1, and John Doe Officer 2 for their direct and indirect actions leading to the deprivation and loss of

Plaintiff's property.

II. JURISDICTION AND VENUE

2. Jurisdiction is conferred upon this Court by 28 U.S.C. § 1331 as this action arises under the laws of the United States, including 42 U.S.C. § 1983.

3. Venue is proper in this district under 28 U.S.C. § 1391 as the events giving rise to the claims occurred in this district.

III. PARTIES

4. Plaintiff Tyler Allen Lofall is a resident of Clackamas County, or Multnomah County, Oregon.

5. Defendant State of Oregon is the governing body responsible for the operation of the Clackamas County Police Department.

6. Defendant County of Clackamas is the local government entity overseeing law enforcement activities within its jurisdiction, including those of the Clackamas County Police Department.

7. Defendant Clackamas County Police Department is a law enforcement agency operating within Clackamas County, Oregon.

8. Defendants John Doe Officer 1 and John Doe Officer 2 are officers employed by the Clackamas County Police Department, sued herein in their individual and official capacities.

IV. FACTUAL ALLEGATIONS

9. On May 24th 2022, Plaintiff was arrested by officers of the Clackamas County Police Department, including John Doe Officer 1 and John Doe Officer 2, in a parking lot while obtaining food from Little Caesars.

10. Prior to this arrest, Plaintiff had been released from jail on bail for the same issue for which he was being re-arrested, leading to a direct violation of his rights due to a lack of due process and an immediate re-arrest warrant.

11. At the time of the arrest, Plaintiff was in possession of John Barachello's vehicle and vehicle keys, which he explicitly instructed the arresting officers not to leave with the individuals present, referred to as "Shady people," due to their untrustworthy nature.

12. Despite Plaintiff's clear instructions, the arresting officers willfully and negligently disregarded this request, allowing these individuals access to the vehicle and its keys.

13. This negligent action by the officers directly led to the theft of the vehicle and subsequent loss of Plaintiff's valuable materials and tools, which were left at a friend's house, John Barachello.

14. The loss of Plaintiff's property was exacerbated by the officers' failure to secure the property during and following the arrest, constituting negligence and a violation of Plaintiff's civil rights.

15. The actions of the officers, as evidenced by cruiser camera video, demonstrate a clear disregard for Plaintiff's property rights and personal safety, leading to the deprivation of property without due process.

V. CLAIMS FOR RELIEF

First Cause of Action: Negligence by Police

16. Plaintiff realleges and incorporates by reference the foregoing paragraphs.

17. The actions of Defendants John Doe Officer 1 and John Doe Officer 2 in failing to secure Plaintiff's property and in disregarding his explicit instructions amounted to negligence.

18. As a direct and proximate result of this negligence, Plaintiff suffered the loss of valuable property.

Second Cause of Action: Deprivation of Property under 42 U.S.C. § 1983

19. Plaintiff realleges and incorporates by reference the foregoing paragraphs.

20. The actions of Defendants deprived Plaintiff of his property without due process of law, in violation of the Fourteenth Amendment to the United States Constitution and 42 U.S.C. § 1983.

Third Cause of Action: Civil Theft or Conversion

21. Plaintiff realleges and incorporates by reference the foregoing paragraphs.

22. The actions of Defendants directly or indirectly led to the theft and conversion of Plaintiff's property, constituting civil theft or conversion.

Fourth Cause of Action: Violation of Civil Rights

23. Plaintiff realleges and incorporates by reference the foregoing paragraphs.

24. Defendants' actions constituted a violation of Plaintiff's civil rights, including his rights to property and due process.

Fifth Cause of Action: Intentional Infliction of Emotional Distress

25. Plaintiff realleges and incorporates by reference the foregoing paragraphs.

26. Defendants' actions, specifically their willful disregard for Plaintiff's explicit instructions concerning the safety of his property and subsequent indifference to the consequences of their actions, constituted extreme and outrageous conduct.

27. This conduct was intentional or reckless and was directed at Plaintiff.

28. As a direct result of Defendants' conduct, Plaintiff suffered severe emotional distress, including but not limited to anxiety, stress, and mental anguish.

29. The nature of Defendants' conduct and its impact on Plaintiff justifies an award for damages.

VI. PRAYER FOR RELIEF

WHEREFORE, Plaintiff Tyler Allen Lofall respectfully requests that this Court:

a. AWARD COMPENSATORY DAMAGES IN AN AMOUNT TO BE DETERMINED AT TRIAL;

b. GRANT INJUNCTIVE RELIEF AS NECESSARY TO PREVENT FURTHER VIOLATIONS OF PLAINTIFF'S RIGHTS;

c. AWARD PLAINTIFF HIS COSTS AND ATTORNEYS' FEES INCURRED IN THIS ACTION;

d. GRANT SUCH OTHER AND FURTHER RELIEF AS THE COURT DEEMS JUST AND PROPER;

e. AWARD DAMAGES FOR EMOTIONAL DISTRESS IN THE AMOUNT OF $150,000.

VII. JURY DEMAND

Plaintiff demands a trial by jury on all issues so triable.

Plaintiff respectfully submits this Complaint on his own behalf,

I hereby certify on this 7th day of May, 2024,

/s/ Tyler A Lofall

Tyler Allen Lofall
6880 NW 271st Ave
Hillsboro, OR 97124
Phone: (386) 262-3322

Attach to Complaint & Docs.

UNITED STATES DISTRICT COURT

for the

District of Oregon

Portland Division

Tyler A. Lofall

Plaintiff(s)

(Write the full name of each plaintiff who is filing this complaint. If the names of all the plaintiffs cannot fit in the space above, please write "see attached" in the space and attach an additional page with the full list of names.)

-v-

The State of Oregon et al

Defendant(s)

(Write the full name of each defendant who is being sued. If the names of all the defendants cannot fit in the space above, please write "see attached" in the space and attach an additional page with the full list of names.)

Case No. _____

(to be filled in by the Clerk's Office)

Jury Trial: *(check one)* ☑ Yes ☐ No

SEE Complaint & SEE complaint C

COMPLAINT FOR A CIVIL CASE

I. The Parties to This Complaint

A. The Plaintiff(s)

Provide the information below for each plaintiff named in the complaint. Attach additional pages if needed.

Name	Tyler A Lofall
Street Address	MAIL ONLY 6880 N.W. 271st Ave
City and County	Hillsboro, OR 97124
State and Zip Code	
Telephone Number	cell (386) 262-3322
E-mail Address	preferred tylerALofall@gmail.com

B. The Defendant(s)

Provide the information below for each defendant named in the complaint, whether the defendant is an individual, a government agency, an organization, or a corporation. For an individual defendant, include the person's job or title *(if known)*. Attach additional pages if needed.

Defendant No. 1

Name State of Oregon

Job or Title *(if known)*

Street Address

City and County

State and Zip Code

Telephone Number

E-mail Address *(if known)*

Defendant No. 2

Name County of Clackamas

Job or Title *(if known)*

Street Address

City and County

State and Zip Code

Telephone Number

E-mail Address *(if known)*

Defendant No. 3

Name Clackamas County Sheriff

Job or Title *(if known)* Jt - JAIL

Street Address

City and County

State and Zip Code

Telephone Number

E-mail Address *(if known)*

Defendant No. 4

Name West Linn Police depot

Job or Title *(if known)*

Street Address

City and County

State and Zip Code

Telephone Number

E-mail Address *(if known)*

II. Basis for Jurisdiction

Federal courts are courts of limited jurisdiction (limited power). Generally, only two types of cases can be heard in federal court: cases involving a federal question and cases involving diversity of citizenship of the parties. Under 28 U.S.C. § 1331, a case arising under the United States Constitution or federal laws or treaties is a federal question case. Under 28 U.S.C. § 1332, a case in which a citizen of one State sues a citizen of another State or nation and the amount at stake is more than $75,000 is a diversity of citizenship case. In a diversity of citizenship case, no defendant may be a citizen of the same State as any plaintiff.

What is the basis for federal court jurisdiction? *(check all that apply)*

☑ Federal question ☐ Diversity of citizenship

Fill out the paragraphs in this section that apply to this case.

A. If the Basis for Jurisdiction Is a Federal Question

List the specific federal statutes, federal treaties, and/or provisions of the United States Constitution that are at issue in this case.

First, Fourth, Sixth, Seventh, & fourteenth Amendments of the US Constitution

B. If the Basis for Jurisdiction Is Diversity of Citizenship

1. The Plaintiff(s)

a. If the plaintiff is an individual

The plaintiff, *(name)* _____, is a citizen of the State of *(name)* _____.

b. If the plaintiff is a corporation

The plaintiff, *(name)* _____, is incorporated under the laws of the State of *(name)* _____, and has its principal place of business in the State of *(name)* _____.

(If more than one plaintiff is named in the complaint, attach an additional page providing the same information for each additional plaintiff.)

2. The Defendant(s)

a. If the defendant is an individual

The defendant, *(name)* _____, is a citizen of the State of *(name)* _____. Or is a citizen of *(foreign nation)* _____.

b. If the defendant is a corporation

The defendant, *(name)* _____, is incorporated under the laws of the State of *(name)* _____, and has its principal place of business in the State of *(name)* _____.

Or is incorporated under the laws of *(foreign nation)* _____, and has its principal place of business in *(name)* _____.

(If more than one defendant is named in the complaint, attach an additional page providing the same information for each additional defendant.)

3. The Amount in Controversy

The amount in controversy–the amount the plaintiff claims the defendant owes or the amount at stake–is more than $75,000, not counting interest and costs of court, because *(explain)*:

*(FAR more) $111,943.56 Assignment of Benefits Stolen & Spoiled.
* $300,000 lost, + Business.
+ emotional distress of 4. Month in Jail.

III. Statement of Claim

Write a short and plain statement of the claim. Do not make legal arguments. State as briefly as possible the facts showing that each plaintiff is entitled to the damages or other relief sought. State how each defendant was involved and what each defendant did that caused the plaintiff harm or violated the plaintiff's rights, including the dates and places of that involvement or conduct. If more than one claim is asserted, number each claim and write a short and plain statement of each claim in a separate paragraph. Attach additional pages if needed.

False Arrest Caused me to lose my AOB.
Then multiple agency Conspired to Force Harm to get a guilty Verdict Knowing I was Not Guilty, by Fake evidence & Leveraging Witness.

IV. Relief

State briefly and precisely what damages or other relief the plaintiff asks the court to order. Do not make legal arguments. Include any basis for claiming that the wrongs alleged are continuing at the present time. Include the amounts of any actual damages claimed for the acts alleged and the basis for these amounts. Include any punitive or exemplary damages claimed, the amounts, and the reasons you claim you are entitled to actual or punitive money damages.

- Lost everything And forced Homeless. 100k in tools.
- 3 vehicles, 7 trailers. Business
- Caught Covid (Forced)
- hyperthermia
- ruined credibility of helpers
- Punitive, Consequential, Compensatory, Economic

Spent 2 yrs. Homeless Fighting for rights. So much Stress

V. Certification and Closing

Under Federal Rule of Civil Procedure 11, by signing below, I certify to the best of my knowledge, information, and belief that this complaint: (1) is not being presented for an improper purpose, such as to harass, cause unnecessary delay, or needlessly increase the cost of litigation; (2) is supported by existing law or by a nonfrivolous argument for extending, modifying, or reversing existing law; (3) the factual contentions have evidentiary support or, if specifically so identified, will likely have evidentiary support after a reasonable opportunity for further investigation or discovery; and (4) the complaint otherwise complies with the requirements of Rule 11.

SEE Attached Complaints + Documents.

A. For Parties Without an Attorney

I agree to provide the Clerk's Office with any changes to my address where case–related papers may be served. I understand that my failure to keep a current address on file with the Clerk's Office may result in the dismissal of my case.

Date of signing: MAY 22 2024

Signature of Plaintiff

Printed Name of Plaintiff Tyler A. Lopall

B. For Attorneys

Date of signing: _____

Signature of Attorney _____

Printed Name of Attorney _____

Bar Number _____

Name of Law Firm _____

Street Address _____

State and Zip Code _____

Telephone Number _____

E-mail Address _____